

MERIDIANHEALTH INSURANCE COMPANY

# Terms and Conditions

Governing Provisions for All MeridianHealth Insurance Plans

Plan Year 2026

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Licensed in: CT, NY, NJ, PA, MA, MD, VA, NC, GA, FL, OH, IL, MI, TX, CO, AZ, WA, OR, CA, MN, WI, IN

*This document constitutes part of the policy contract. Retain with your policy records.*

## SECTION 1 — DEFINITIONS

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**Allowable Amount.** The maximum amount MeridianHealth will recognize for a covered service based on contracted rates with in-network providers or the Maximum Allowable Amount (MAA) schedule for out-of-network providers. The MAA for out-of-network services is calculated as 150% of the Medicare fee schedule for the same service in the same geographic area.

**Coinsurance.** The percentage of costs of a covered service that the member pays after the annual deductible has been satisfied. The member's coinsurance percentage varies by plan tier and is specified in the Plan Benefits and Coverage Guide (Document MH-BRO-2026-047).

**Copayment (Copay).** A fixed dollar amount the member pays at the time of receiving a covered service. Copayments apply before the deductible is met for office visits and prescription drugs; all other copayments apply after the deductible is met unless otherwise stated.

**Covered Service.** A health care service or supply that is (a) medically necessary, (b) listed as a covered benefit under the member's plan, (c) received from a licensed provider, and (d) not excluded under the Claim Exclusion Reference (Document MH-EXC-2026-047).

**Deductible.** The amount the member must pay out of pocket for covered services in a plan year before MeridianHealth begins paying its share. The deductible resets on January 1 of each plan year. Family deductible is aggregate — no single individual pays more than the individual deductible amount.

**Effective Date.** The date coverage begins. For Open Enrollment: January 1. For Special Enrollment: first day of month following plan selection (if selected 1st–15th) or first day of second following month (if selected 16th–end of month).

**Emergency Medical Condition.** A condition manifesting by acute symptoms of sufficient severity such that a prudent layperson could reasonably expect that absence of immediate medical attention would place health in serious jeopardy, cause serious impairment, or serious dysfunction of any bodily organ or part.

**In-Network Provider.** A physician, hospital, laboratory, pharmacy, or other provider with a contractual agreement with MeridianHealth to provide services at negotiated rates.

**Maximum Allowable Amount (MAA).** For out-of-network services: 150% of the Medicare fee schedule rate for the same or similar service in the same geographic area. Charges exceeding the MAA are the member's responsibility and do not apply toward deductible or out-of-pocket maximum.

**Medically Necessary.** A service that is (a) required to diagnose or treat an illness, injury, or condition, (b) consistent with generally accepted medical practice, (c) not primarily for convenience, and (d) the most cost-effective level that can safely be provided. MeridianHealth's Medical Director makes the final determination.

**Plan Year.** The 12-month period January 1 through December 31 during which benefits, deductibles, and out-of-pocket maximums apply. All accumulators reset at the beginning of each plan year.

**Pre-Existing Condition.** Any illness, injury, disease, or physical condition for which medical advice, diagnosis, care, or treatment was recommended or received during the look-back period. For ACA plans: exclusions prohibited. For Supplemental Shield: 12-month look-back.

**Prior Authorization.** Advance approval from MeridianHealth's Utilization Management department. Failure to obtain required prior authorization may result in a 30% reduction in benefits. Emergency admissions require notification within 48 hours.

## SECTION 2 — ELIGIBILITY AND ENROLLMENT

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### 2.1 Individual and Family Plans

Any individual residing in a MeridianHealth licensed state who is not incarcerated and is a U.S. citizen, U.S. national, or lawfully present in the United States is eligible to enroll during the annual Open Enrollment Period or a qualifying Special Enrollment Period. Dependents eligible for coverage include the member's legal spouse or domestic partner and children up to age 26 regardless of student status, marital status, or financial dependency.

### 2.2 Employer-Sponsored Group Plans

Employees working 30 or more hours per week are eligible. The employer may impose an enrollment waiting period of up to 90 calendar days from the date of hire. Coverage is effective on the first day of the month following completion of the waiting period. Example: employee hired March 15 completes 90-day wait on June 12; coverage effective July 1.

### 2.3 Supplemental Shield Plan

Available to individuals aged 18 to 64 in all licensed states except New York. Enrollment is accepted year-round. Applicants 65+ are eligible only with active employer-sponsored primary medical coverage. Coverage effective first day of month following application approval.

## SECTION 3 — PREMIUM PAYMENT AND GRACE PERIOD

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Premiums are due on the first day of each month. MeridianHealth provides a 31-day grace period for premium payment. Members receiving an Advance Premium Tax Credit (APTC) are entitled to a 90-day grace period per 45 CFR 156.270. During the first 30 days, MeridianHealth will continue to pay claims. During days 31 through 90, claims may be held pending. If premiums are not paid by end of grace period, coverage terminates retroactively to the last day of the last month for which premiums were fully paid.

## SECTION 4 — WAITING PERIODS

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### 4.1 ACA-Compliant Plans — No Condition-Specific Waiting Periods

Under the Affordable Care Act, MeridianHealth ACA-compliant plans do not impose any waiting period related to specific health conditions or pre-existing conditions. Once coverage is effective, all covered benefits are available immediately including benefits for pre-existing conditions such as diabetes, hypertension, cancer, heart disease, asthma, depression, and any other previously diagnosed condition. No health questionnaire, medical underwriting, or evidence of insurability is required for ACA plan enrollment.

### 4.2 Employer-Sponsored Plans — Enrollment Waiting Period

Employer-sponsored group plans may include an enrollment waiting period of up to 90 calendar days from the employee's date of hire, as permitted under ACA Section 2708. This is an enrollment waiting period, not a condition-specific exclusion. Once coverage becomes effective, all benefits including those for pre-existing conditions are available with no further waiting. The employer selects the length (0, 30, 60, or 90 days) at group plan setup.

### 4.3 Supplemental Shield Plan — Benefit Waiting Periods

**Accident Benefits:** No waiting period. Claims eligible from the policy effective date.

**Illness Benefits:** 90-day waiting period. Claims arising from illness, disease, or non-accidental medical conditions are not payable during the first 90 days from the policy effective date.

**Pre-Existing Conditions:** 12-month waiting period. Claims related to any condition for which medical advice, diagnosis, care, or treatment was recommended or received during the 12 months immediately preceding the policy effective date are not payable during the first 12 months. After the 12-month period expires, pre-existing conditions are covered under the same terms as any other eligible condition. The look-back applies separately to each covered individual.

*Example: A member with Type 2 diabetes diagnosed March 2025 enrolls in the Supplemental Shield plan effective July 1, 2026. Diabetes-related claims are not eligible for benefits until July 1, 2027. Accident claims are eligible from July 1, 2026. Non-pre-existing illness claims are eligible from September 28, 2026 (after the 90-day wait).*

## SECTION 5 — RENEWAL AND RATE CHANGES

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MeridianHealth guarantees renewal of all ACA-compliant plans. Premiums may be adjusted at renewal based on age, geographic rating area, tobacco use (up to 1.5:1 ratio), and family size only. No premium adjustment may be based on health status, claims history, gender, or occupation. At least 60 days' written notice before any premium change.

## SECTION 6 — TERMINATION OF COVERAGE

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Coverage may be terminated for: (a) non-payment after grace period; (b) permanent move outside service area; (c) gaining other minimum essential coverage; (d) fraud or intentional misrepresentation; (e) employer discontinues group coverage. MeridianHealth will not rescind coverage except for fraud or intentional misrepresentation, with 30 days' written notice.

## SECTION 7 — APPEALS AND GRIEVANCE PROCESS

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### 7.1 Internal Appeal

The member must file an internal appeal within 180 calendar days of receiving the adverse benefit determination notice. Reviewed by a physician not involved in the original decision. Standard decision: 30 calendar days (pre-service) or 60 calendar days (post-service). Urgent care: 72 hours. The member may submit additional documentation.

### 7.2 External Review

If internal appeal denied, the member may request external review by a certified Independent Review Organization (IRO) within 4 months. Conducted under federal standards (45 CFR Part 147). IRO decision is binding on MeridianHealth. Standard decision: 45 calendar days. Expedited: 72 hours. No cost to the member.

## SECTION 8 — CONTINUATION OF COVERAGE (COBRA)

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Members losing employer-sponsored coverage due to qualifying events may elect COBRA continuation for up to 18 months (36 months for certain events). COBRA premium is 102% of the full group rate. Election notice within 14 days of the qualifying event. Member has 60 days to elect COBRA from the date of the election notice.

## SECTION 9 — GOVERNING LAW

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This policy is governed by the laws of the state in which it is issued, to the extent not preempted by federal law including ERISA for employer-sponsored plans. Disputes shall be resolved through binding arbitration per the American Arbitration Association rules, except the member retains the right to file a complaint with the state Department of Insurance and to pursue external review.

## SECTION 10 — CROSS-REFERENCES

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Read in conjunction with: **Plan Benefits & Coverage Guide (MH-BRO-2026-047)**; **Claim Exclusion Reference (MH-EXC-2026-047)**; **Claim Process and Reimbursement Guide (MH-CPG-2026-047)**.

In the event of a conflict between this document and the policy contract issued to the member, the policy contract governs. MeridianHealth Insurance Company | One Constitution Plaza, Hartford, CT 06103